Bishop's Waltham Parish Council
Executive Officer: Mrs E McKenzie
01489 892323

Parish Council Office
The Jubilee Hall
Little Shore Lane
Bishop's Waltham
Hampshire
SO32 1ED

Paul Taylor
10 Colt View
Bishop's Waltham
SO32 1TF

22nd November 2024

Dear Mr Taylor,

Thank you for your email dated 25th October 2024 regarding a Freedom of Information request as below:-

Requested Information:

- *Any records, emails, reports, minutes, contracts, or related documents pertaining to interactions or agreements with Crest Nicholson.*

Clarified by yourself as: *This would be in relation to the Albany Wood/Tangier Gardens estates Southern Footpath only.*

I have followed our Freedom of Information policy and attach the relevant documents requested to the best of my ability within the standard 20 working day period.

If you do have any further queries regarding this request and topic, then please do not hesitate to contact me and I will endeavour to assist.

We have agreed to meet to discuss next steps that ourselves, with Winchester City Council and local landowners, are planning to take to complete the southern footpath project and I look forward to confirming a date for this meeting.

Yours faithfully

E McKenzie

Mrs Emma McKenzie

Executive Officer
Bishop's Waltham Parish Council
parishclerk@bishopswaltham-pc.gov.uk

Timeline of Southern Footpath/Cycleway Project

as drawn up by a BWPC Councillor for PC meeting 12.11.24

Timeline of the Southern Footpath and Cycleway Project

Local Plan
A series of developments on the Southern side of the village

Section 106 Agreement
Developments to be linked by a new footpath cycleway to allow sustainable movement away from the B2177. Planning permission granted to Bargate and Crest Nicholson (CN).

2018/2019
Meeting between BWPC to discuss the quality of the path and location through Priory Park. Footpath included on the maps of the new developments.

2021/2022
Bargate complete their sections of the footpath.

Meetings arranged between CN, PC, WCC and Landowners to discuss route of path between the two CN developments across Tangier Lane which is a private lane. All present felt that agreement was reached on where the footpath would cross the private road.

2022/2023
No progress noticed on the CN developments – new site manager denied knowledge of footpath.
Meeting with CN reps at which they verbally agreed to complete the path if PC supported their option on land south of the current development, Tangier Gardens, next to Priory Park. BWPC declined offer.

2023
PC complete the sections of the path on our land at the Allotments and alongside and through Priory Park (also including bridge work at the Allotments and by entrance/exit to Bosworth Gardens).
Constant requests to CN about their section – marking of route, linking estates.
In order to help residents, PC suggest an alternative route with a map so that people can walk into the village centre (temporary route via Siskin Close and Tangier Lane). This route is much longer and not the obvious one as mapped on the footpaths on CN development plans.

2024
CN declare that 'as the PC have completed a route, they (CN) no longer need to do anything further on the routes through their two estates' (see relevant email).

Summary
CN have not fulfilled part of their planning permission granted.
WCC should ensure that CN have adhered to planning permission approved and the S106.
Costs for this pathway should be covered by CN (via S106 provision) or a fine?
Costs should not be passed to the Estate Management Company for the residents to then cover.

Suggested Actions
- WCC to enforce S106 requirements with CN
- Review actions needed to complete footpath – signage, route signs, links
- Liaise with CN to agree to path improvements on their land which will then tie in with the relevant landowners and HCC Countryside Access to finalise the route and works required.
- Funding to be drawn from Developers' contributions (as gathered by WCC).

Extract of S106 Agreement

pertaining to the Off-Site Strategic Footpath and Cycleway Contribution

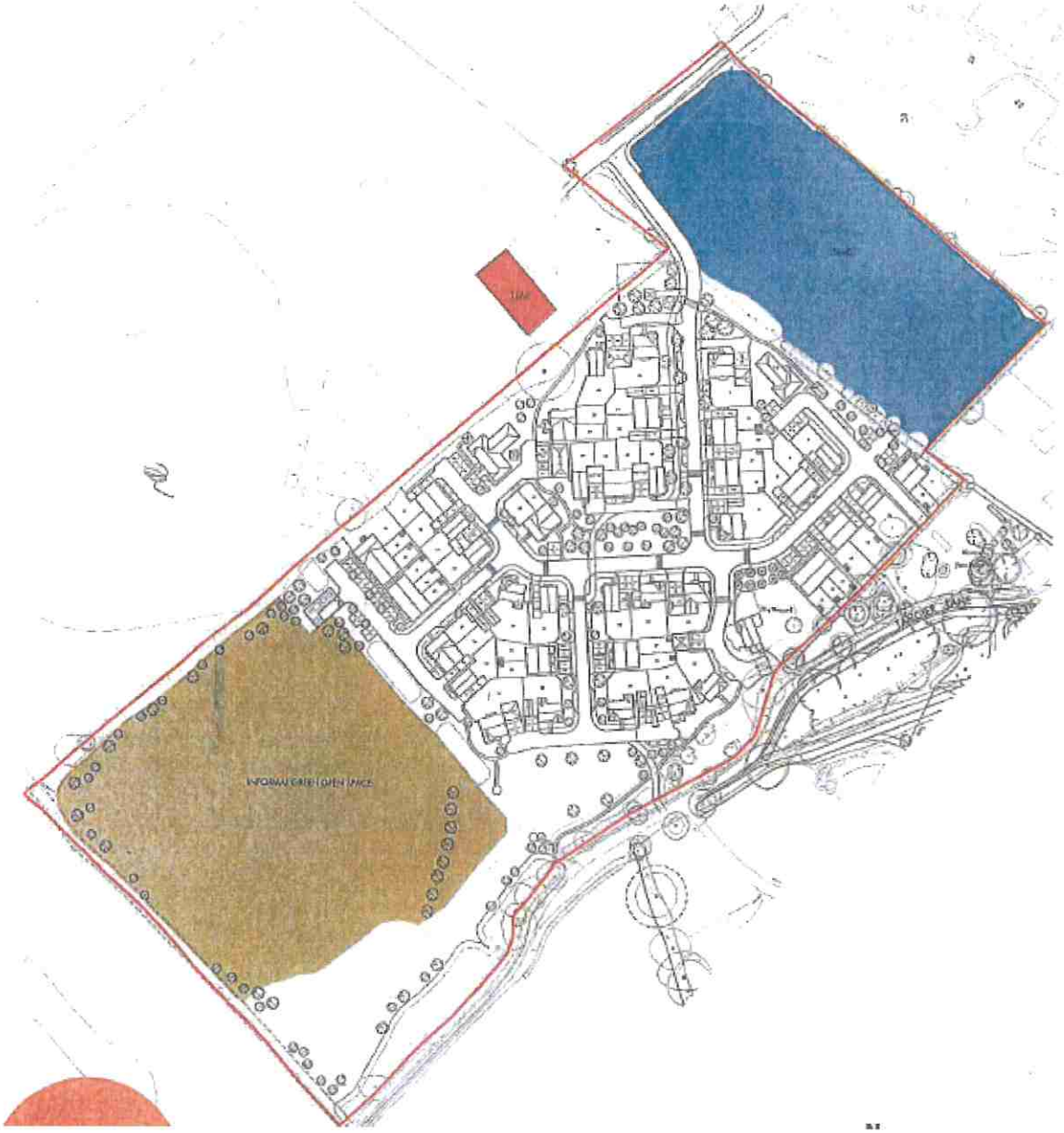
(Full document available if required)

Off-Site Strategic Footpath and Cycleway Contribution	a contribution in the amount of twenty one thousand, seven hundred and twenty nine pounds nineteen pence (£21,729.19) towards a strategic footpath and cycleway along the southern edge of Bishops Waltham which contribution shall be Index-Linked
Open Market Unit	any Dwelling to be constructed upon the Land not being an Affordable Housing Unit and "Open Market Units" shall be construed accordingly
Open Market Value	the open market value of a Dwelling as determined in accordance with sections 156 and 158 of the Housing Act 1985 (as amended)
Open Space	that area of public open space on the Land shown coloured blue on Plan 3 being the area marked and designated as a SINC and which is to be offered to the Parish Council in accordance with Part 3 of Schedule Two and to which the provisions of Schedule Two shall apply
Open Space Strategy	the Winchester Open Space Strategy as Approved by the Council from time to time, including any amendments, revisions or re-issues thereof
Open Space Works	a scheme of works in relation to the Landscaped Areas and Incidental Green Spaces which has been Approved by the Council and which is in accordance with the Council's Specification for Soft Landscape Works but which for the avoidance of any doubt shall not include the Informal Green Open Space or the Open Space
Permission	the grant of planning permission pursuant to the Application

Extract of S106 Agreement

Showing footpath at southern end of estate towards Tangier Lane

(Full document available if required)


WORM CAST OPEN PACE

All minutes of Parish Council meetings are available on the website:-

www.bishopswaltham-pc.gov.uk

Specific Detail from Parish Council meeting 6.6.2018 relating to the Planning Applications from Crest Nicholson Operations Ltd

1. **Paper to Council**
2. **Minutes from Council meeting**
3. **Letter to WCC from Council**

LOCAL COUNCIL AWARD SCHEME QUALITY

Bishop's Waltham Parish Council

6th June 2018

Agenda Item – Planning applications for consideration:

1. **18/01144/REM** **Closing date for comments: 6.6.18**
   Crest Nicholson Operations Ltd.
   Application for planning permission for the erection of 66 dwellings with associated access via Tangier Lane, associated parking provision, landscaping and public open space pursuant to planning permission 16/01327/OUT (this application may affect the setting of a public right of way).
   Land to the East of Tangier Lane, Bishop's Waltham.

2. **18/01114/FUL** **Closing date for comments: 15.6.18**
   Crest Nicholson Operations Ltd.
   Variation of condition 05 of permission 16/01322/FUL to make reference to 'clay tiles' rather than 'clay plain tiles'.
   Land to the West of Tangier Lane, Bishop's Waltham.

3. **17/02075/FUL** **Closing date for comments: 13.6.18**
   Beechcroft Homes.
   Conversion of the Mill building and construction of a 66-bed care home, 39 assisted living units, 19 family house and 12 affordable homes (amended plans and description) and associated works.
   Station Road, Bishop's Waltham.

The Council is requested to consider responses to the above applications.

LE
24.5.18

Parish Council Office, The Jubilee Hall, Little Shore Lane,
Bishop's Waltham, Hampshire, SO32 1ED. Tel: 01489 892323

BISHOP'S WALTHAM PARISH COUNCIL
Minutes of the Extra Meeting of the Parish Council held in the Jubilee Hall, Little Shore Lane, Bishop's Waltham on Wednesday 6th June 2018 commencing at 6.00 pm.

Present: [redacted]

In attendance: [redacted]

Representatives from Crest Nicholson, [redacted]

Members of the public: 5

18:037 To receive and accept apologies for non-attendance.

[redacted]

Resolved: to receive and accept apologies for non-attendance as tabled.

[redacted]

All in favour.

18:038 To receive and accept Declarations of Disclosable Pecuniary Interests on items on the agenda.
None relating to the business of the meeting.

18:039 To receive and accept any personal, pecuniary and non-pecuniary interests on items on the agenda.
None relating to the business of the meeting.

18:040 Public Session.
The representatives from Crest Nicholson and [redacted] presented their applications.
Members of the public addressed the Council on the Tangier Lane application covering access issues, impact of additional vehicles, public notification, use of road by agricultural vehicles, safety concerns, covenant on PP preventing access via the Avenue.
[redacted] reminded those present that a site visit had been undertaken by councillors from the WCC Planning Development Control Committee and although he considered the road was not wide enough the outline application had been approved.

[redacted]

18:041 Planning applications for consideration:

18/01144/REM **Closing date for comments: 6.6.18**

Crest Nicholson Operations Ltd.

Application for planning permission for the erection of 66 dwellings with associated access via Tangier Lane, associated parking provision, landscaping and public open space pursuant to planning permission 16/01327/OUT (this application may affect the setting of a public right of way).

Land to the East of Tangier Lane, Bishop's Waltham.

[redacted] Chair of the Council's Planning Committee presented the proposal.

Councillors' discussion points:

Design not in keeping with Design Statement; monotonous proposal with no variety; does not reflect character of BW.

Concerns over access whilst noting that this had already received approval. Cumulative impact of all new developments may be an issue. Understanding of concerns raised by residents.

Local Plan identified sites and concerns over the access for all sites raised at the time. Discussions with HCC and WCC but not proven that the build up of traffic supported any changes to the Winchester Road.

Layout and planting acceptable.

Avenue access would not be a simple option – oak trees would need to be removed.

Traffic management on Winchester Road, highways officer comments, surveys undertaken, models should inform future development proposals.

Proposed cycleway has break between developments – not clear how this will become a clear route.

Southern boundary – improvements needed in landscaping.

Affordable housing sited in one area.

Impact on Siskin Close/Park Road junction not addressed.

PC attendance at WCC PDC site meeting.

Resolved: to support this application with the following comments/requests:

1. Request confirmation of the cycleway plans to join up the East and West sites of this development.

2. Assessment to be made of the traffic impact and safety concerns at the Siskin Close/ Park Road junction.

3. Request a review of the overall design of the buildings to add interest and avoid the monotony of the materials used in the elevations.

4. Request improvements to the landscaping to clearly define the south settlement boundary.

Proposed: Chairman

All in favour.

18/01114/FUL **Closing date for comments: 15.6.18**

Crest Nicholson Operations Ltd.

Variation of condition 05 of permission 16/01322/FUL to make reference to 'clay tiles' rather than 'clay plain tiles'.

Land to the West of Tangier Lane, Bishop's Waltham.

Resolved: to make no comment on this application.

Proposed: Chairman

All in favour.

17/02075/FUL **Closing date for comments: 13.6.18**
Beechcroft Homes.

[redacted]

18:042 Date of next meeting – 12.6.18.
Noted.

There being no further business the meeting closed at 7.35pm.

LOCAL COUNCIL AWARD SCHEME QUALITY

Bishop's Waltham Parish Council
Parish Council Office
The Jubilee Hall, Little Shore Lane
Bishop's Waltham
Hampshire, SO32 1ED
01489 892323

Mr R Green
Winchester City Council
Planning Management
City Offices
Colebrook Street
Winchester
SO23 9LJ

June 7th 2018

Dear Mr Green

18/01144/REM
Crest Nicholson Operations Ltd.
Application for planning permission for the erection of 66 dwellings with associated access via Tangier Lane, associated parking provision, landscaping and public open space pursuant to planning permission 16/01327/OUT (this application may affect the setting of a public right of way).
Land to the East of Tangier Lane, Bishop's Waltham.

The Parish Council considered the above application at the meeting on 6th June 2018 and the following resolution was passed.

To support this application with the following comments/requests:

1. Request confirmation of the cycleway plans to join up the East and West sites of this development.
2. Assessment to be made of the traffic impact and safety concerns at the Siskin Close/ Park Road junction.
3. Request a review of the overall design of the buildings to add interest and avoid the monotony of the materials used in the elevations.
4. Request improvements to the landscaping to clearly define the south settlement boundary.

Yours sincerely

Mrs Lindsay Edge
Clerk to the Council.

Parish Council Working Group notes from 2020

Bishop's Waltham Parish Council

Planning & Highways Committee
28th January 2020

The Southern Footpath/Cycleway

Background

Attached, at Appendix 1, is the proposed route of the southern footpath/cycleway linking the current housing development sites. The Policy for each site has a specific requirement to provide the relevant section of the route. There are two sections that cross Parish Council land. The purpose of this paper is to initiate the work required by the Parish Council to join up the housing development sites.

Housing Development Sites

The WCC Local Plan (2017-31) contained the policies for the Bishop's Waltham housing development sites. Each site included a requirement to provide a new/improved footpath/cycleway through the site. These were to provide the appropriate sections of the complete route from the Tollgate Sawmill site to the railway footpath, south of station roundabout. The relevant extracts of the Local Plan pertaining to the footpath/cycleway are shown at Appendix 2.

Each developer has planned to include the footpath/cycleway within their designs, some of which follow the internal road layout. Most of the three developments are now being constructed.

Parish Council Land

There are two sections of Parish Council land to be crossed:

- The Allotments (Appendix 3) – 100m currently grassed
- Priory Park (Appendix 4) – 400m currently grassed

Construction and Funding

The footpath/cycleway should be 2.5m wide and constructed of tarmac laid on a base. There will be a requirement for some fencing and possibly low-level lighting. There may be some ancillary costs. An estimate is £65,000, with the breakdown shown at Appendix 5.

The Parish Council CIL allocation is £65,000. WCC could be requested to allocate up to £65,000.

Managing the Project

Time is short to get a CIL application in by the end of March. A working group is required to initiate the Project. A list of the tasks, which could be the Terms of Reference, is at Appendix 6.

Recommendation

That the P&H Committee works with the H&G Committee to establish a Working Group to progress the Southern Footpath/Cycleway Project to completion, using this paper as a start.

WCC Adopted Local Plan

Appendix 2

Extracts of Policies on Bishop's Waltham Development Sites

Policy BW4 – Albany Farm

Provide a new/improved footpath/cycleway through the site as part of a route linking the housing and open space at Albany Farm and the route proposed through the Vineyard site (Policy BW3) and explore the potential for a footpath/cycleway link with Tollgate Sawmill site (Policy BW5).

Policy BW3 – The Vineyard/Tangler Lane

Provide a new/improved footpath/cycleway along the northern edge of the site as part of a route along the southern edge of Bishop's Waltham to link with Priory Park and the Martin Street Site (Policy BW2) and the Albany Farm site (Policy BW4).

Policy BW2 – Martin Street

Provide new/improved pedestrian and cycle access from the site:

- to the Station Roundabout; and
- across the site from the Bishop's Waltham to Botley railway trail to Priory Park; and
- to link with The Vineyard Site (Policy BW3), the Albany Farm Site (Policy BW4), the Tollgate Sawmill site (Policy BW5) and beyond.

Bishop's Waltham Parish Council

Statement of Requirement and Request for Quote
12th March 2020

The Southern Footpath/Cycleway

Background

A southern footpath/cycleway linking the current housing development sites in the western area of Bishop's Waltham is proposed. The route is at Appendix 1. The Policy for each site has a specific requirement to provide the relevant section of the route. There are two sections that cross Parish Council land, indicated in the Appendix by B to C (Allotments) and C to D (Priory Park). This Statement of Requirement and Request for Quote relates to constructing a footpath/cycleway on just these sections that cross the Parish Council Land.

The Allotments

This section of the route is at Appendix 2. It is a straight run of 100m across a 2m wide grass verge between the allotments and a fence. It starts at a boundary with a housing development site, being a ditch and undergrowth, in which the developer will construct a section of the cycleway/footpath to meet the allotment site. It ends at an unmade vehicle track where the route will turn to the right along the track

Priory Park

The route is at Appendix 3. It is a complex run of 400m. It starts on a public footpath at the west corner of a development site. It ends on the edge of a housing development site where there is a ditch and hedge boundary, in which the developer will construct a section of the cycleway/footpath to meet Priory Park.

Construction of the Pathway

The footpath/cycleway should be 1.5m wide throughout its length, where possible. Details are at Appendix 4, together with the requirements for fencing and lighting.

Request for Quote

A quote is required which includes:

- The specification for the path, covering each section of the route
- A schedule of delivery of the project, including an estimated date of completion
- The breakdown of costs and the final price to be paid
- Any suggested variations to the requirement or conditions that might affect the final price
- Any additional costed proposals that would enhance the footpath/cycleway

Bishop's Waltham Parish Council

Notes on Site Meeting on The Southern Footpath/Cycleway

29th September 2020

Actions shown by **BOLD CAPITALS** for individua's names

Present:

[redacted]	HCC (Area Countryside Access Manager)
[redacted]	WCC (Principal Planning Officer)
[redacted]	BWPC (Chairman)
[redacted]	BWPC P&H Cttee (Chairman)
[redacted]	BWPC P&H Cttee (Vice-Chairman)

Background

The site meeting was convened to review the progress in planning the southern footpath/cycleway linking the current housing development sites in the western area of Bishop's Waltham. The importance of this link was acknowledged. The agreed route is illustrated at the end of these notes.

The whole of the route was reviewed. The issues raised and the agreed actions are listed below in the order of the route from West to East, not in the order actually visited.

General Specification of the Footpath/Cycleway

Where the path is not following the route of roadways within the housing developments, it will be at least 2m wide bounded by timber at vulnerable edges. The construction should follow the advice from Hampshire County Council (Countryside Access) on Countryside Service Design Standards for Path Surfacing (2013). The top surface should be a layer of self-binding path gravel. There will be solar powered lighting located alongside the path or in the path itself, sufficient only to indicate he route of the pathway.

Albany Farm Development (A – B)

WCC LPP2 Policy BW4 requires the developer to provide "a new/improved footpath/cycleway through the site as part of a route linking the housing and open space at Albany Farm and the route proposed through the Vineyard site (Policy BW3)". Agreement has provisionally been reached with the developer that they will provide the link across the boundary to meet the allotment site.

Parish Council Allotments (B – C)

This section is a straight run of 100m across a 2m wide grass verge alongside the allotments. A post and rail fence will be provided alongside the allotments. [redacted] will update the Request for Quotes to cover this section. [redacted] will offer the Parish Council a list of suitable contractors for both the Parish Council owned sections.

Track Link to Housing Development (BW3) (C – D)
The developer will be upgrading the track, cutting off the corner of the SINC, to enter the site at the north corner.

Tangier Lane Development (D – G)
WCC LPP2 Policy BW3 requires the developer to provide "a new/improved footpath/cycleway along the northern edge of the site as part of a route along the southern edge of Bishop's Waltham to link with Priory Park and the Martin Street Site (Policy BW2) and the Albany Farm site (Policy BW4)". There are 3 sub-sections:

West Site (D – E)
The developer has not yet submitted detailed plans for this site.

Tangier Lane (E – F)
The section of the lane south of the entrance to the East Site is privately owned. It is not known if there have been any negotiations between the owner and the developer to agree either a crossing point or a section to be dual use as the footpath/cycleway. [redacted] will ask the developer, through the Parish Council, for their plans on linking their two sites, East and West.

East Site (F – G)
The developer is constructing a route from the entrance to the site at Tangier Lane to the east tip of the site in an arc through the housing development. A straight-line route, following the public footpath along the line of the northern boundary is preferable. [redacted] will ask [redacted] (WCC) to explore with the developer the option of changing their route to the line of the public footpath with at least two sections of short pathway to join it from the housing access roads. As there might be a net cost, the Parish Council could respond to a request to part-fund.

Public Footpath (G – H)
This section will require an upgrade to the path to widen it to 2m and to build it upon geocell panels to protect the tree roots. (The oak trees at this section do not have TPOs). The chain link fence against the playing fields can be retained. The sharp corner to access the path the Priory Park will need to be rounded off. [redacted] will update the Request for Quotes to cover this section.

Priory Park (H – I)
After crossing the entrance to the car park, the route will follow the wide level pathway down to the meadow and then follow the northern edge to the Martin Street development (Policy BW2). [redacted] will update the Request for Quotes to cover this section.

Martin Street Development (I – J)
WCC LPP2 Policy BW2 requires the developer to provide "new/improved pedestrian and cycle access from the site:

-- to the Station Roundabout; and

-- across the site from the Bishop's Waltham to Botley railway trail to Priory Park;"

[redacted] will prompt the developer to get permission from HCC for access on to the railway trail.

Railway Footpath (J – K)

This is a permissive footpath owned by Hampshire County Council. The distance between the exit from the Martin Street development to the Station Roundabout is 300m. [redacted] will plan for the upgrading of the footpath to accommodate walkers and cyclists, to include adequate drainage and a new ditch as required.

Long Term Maintenance

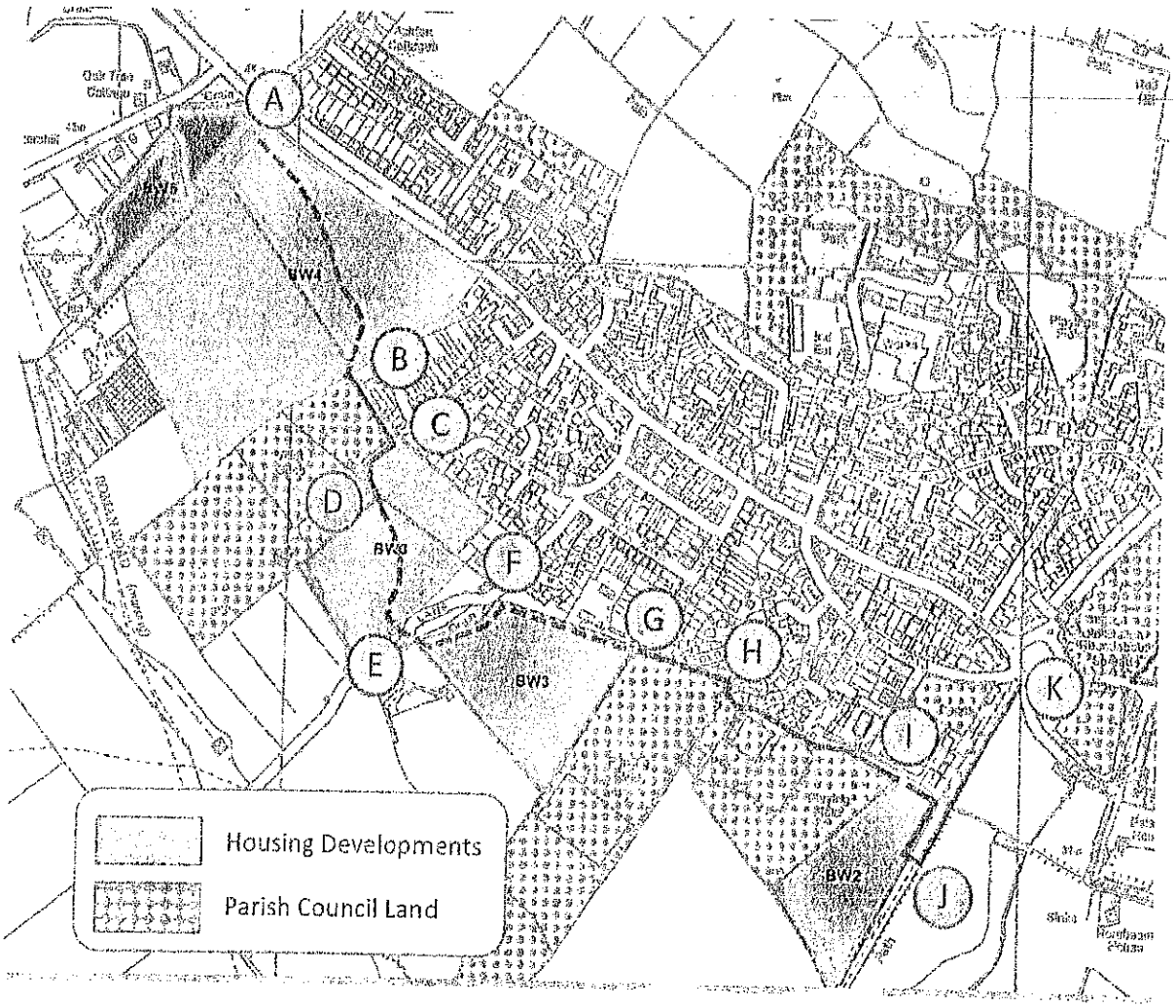
The responsibilities will lie where they fall, that is, to the owners of the relevant sections of the route:

Developer's sites. The relevant management companies.
Parish Council land. The Parish Council.
Public footpath. Hampshire County Council.
Permissive path (railway path). Hampshire County Council.

Project Management

The overall project will be managed by the Parish Council. [redacted] will convene a meeting of the Southern Footpath/Cycleway Project Working Group. [redacted] will update the TORs, published in February 2020, to include the requirement to phase the construction of the route.

Route of the Southern Cycleway/Footpath



Paper from Parish Council Meeting in June 2021 highlighting information on the Southern Footpath/Cycleway Project

Bishop's Waltham Parish Council
Halls & Grounds Committee

June 2021

The Southern Footpath/Cycleway

Background

A southern footpath/cycleway linking the current housing development sites in the western area of Bishop's Waltham is proposed. The route is at Appendix 1. The Policy for each of the 4 development sites site has a specific requirement to provide the relevant section of the route. There are two sections that cross Parish Council land, the Allotments (A – B) and Priory Park (D – E) with one section that runs along a public footpath (C – D), as illustrated in the Appendix. This Statement of Requirement and Request for Quote relates to constructing the sections of the footpath/cycleway on the public footpath and on the Parish Council Land.

The Allotments

This section of the route is at Appendix 2. It is a straight run of 100m across a 2m wide grass verge between the allotments and a fence. It starts at a boundary with a housing development site, being a ditch and undergrowth, in which the developer will construct a section of the cycleway/footpath to meet the allotment site. It ends at an unmade vehicle track where the route will turn to the right along the track. The track is due to be turned into a roadway by a developer.

Priory Park

The route is at Appendix 3. It is a complex run of 400m. It starts on a public footpath at the west corner of a housing development site. It ends on the edge of another housing development site where there is a ditch and hedge boundary in which the developer will construct a section of the cycleway/footpath to meet Priory Park.

Construction of the Pathway

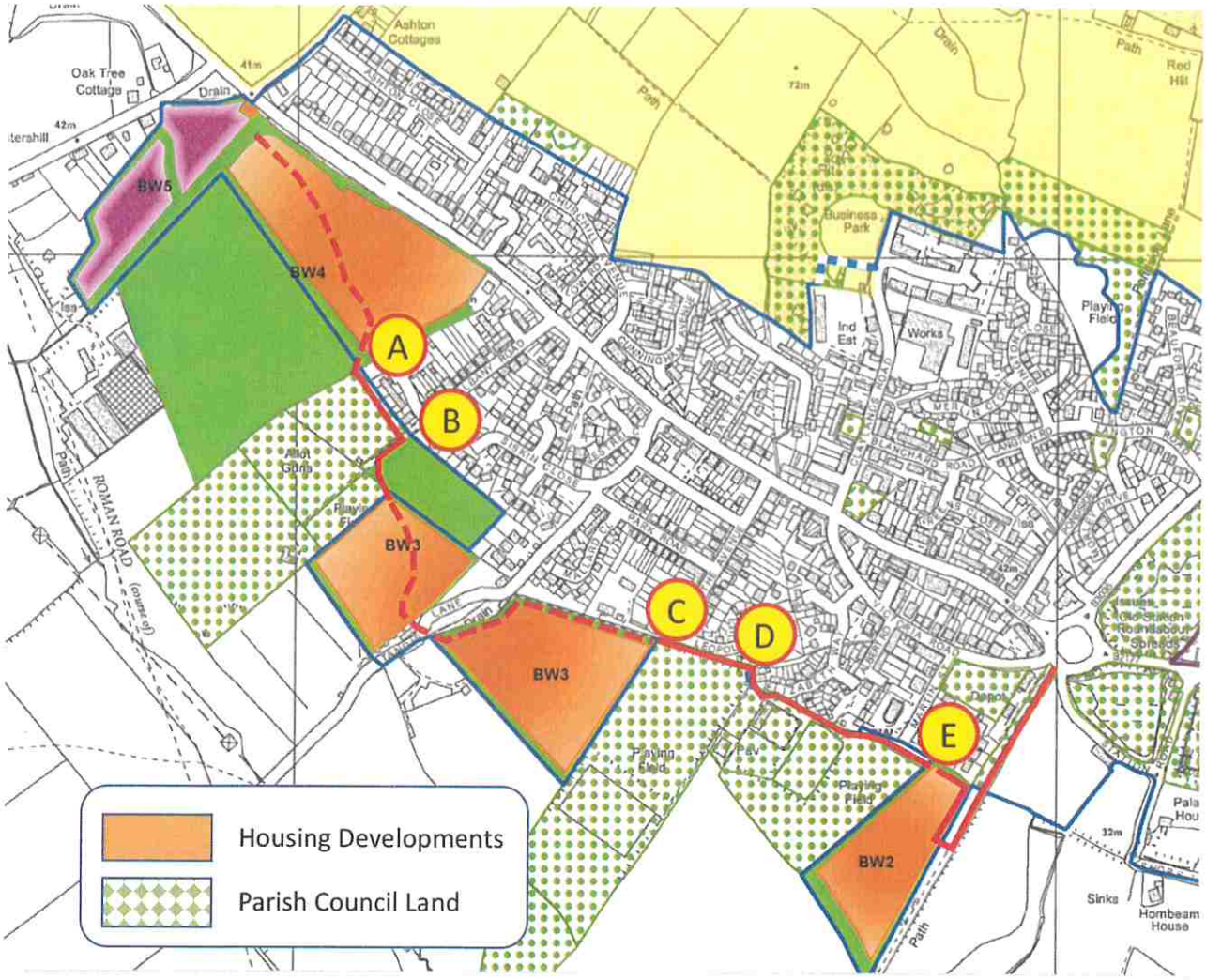
The footpath/cycleway should be 2.5m wide throughout its length, where possible. Details are at Appendix 4, together with the requirements for fencing and lighting.

A tender is required which includes:

- The specification for the path, covering each section of the route
- A schedule of delivery of the project, including an estimated date of completion
- The breakdown of costs and the final price to be paid
- Any suggested variations to the requirement or conditions that might affect the final price
- Any additional costed proposals that would enhance the footpath/cycleway

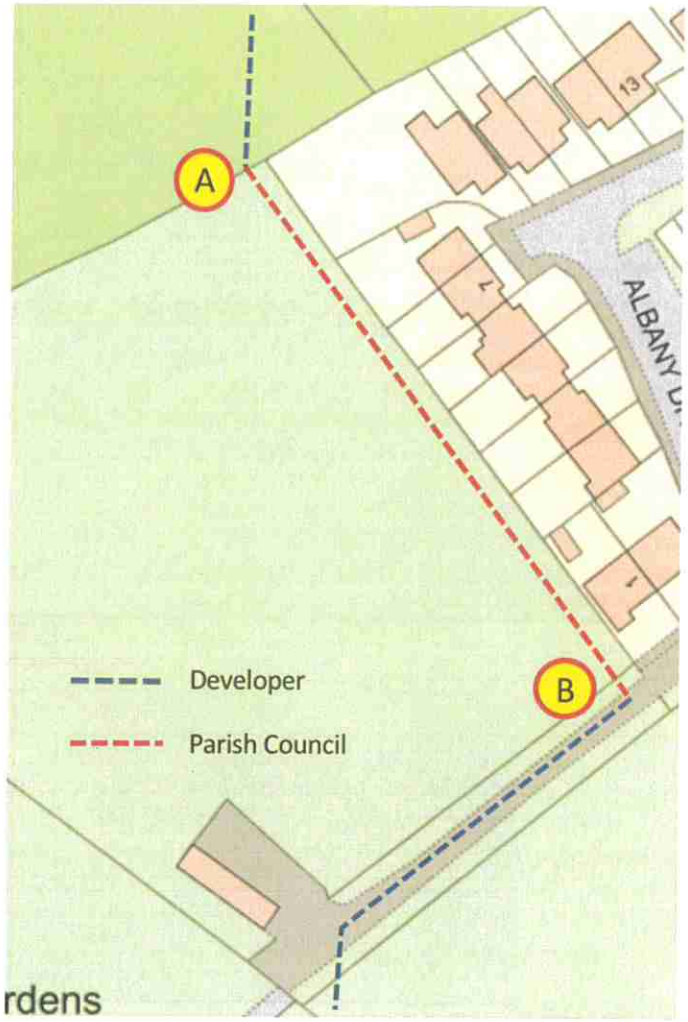
Appendix 1

Route of the Southern Cycleway/Footpath



The Allotments

The route would be a straight line of 100m length along the rear of the gardens of the Albany Drive houses. The land is currently a grassy area of sufficient width to accommodate the footpath/cycleway.

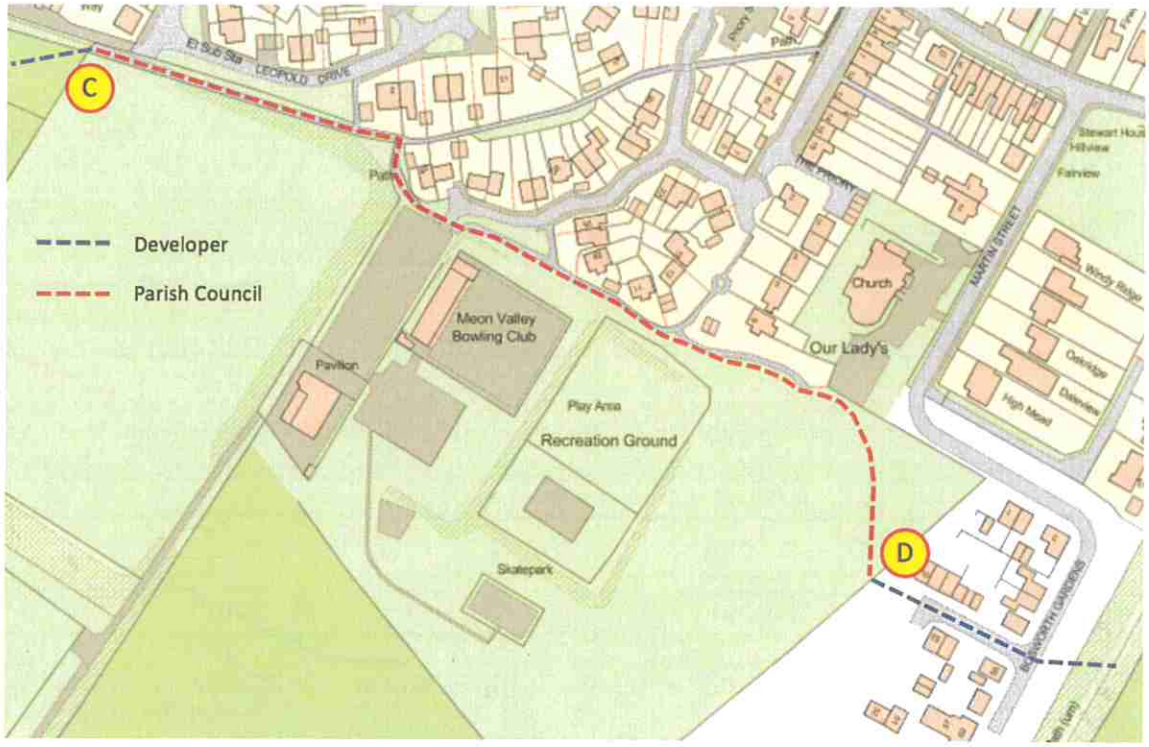


View from A

View towards B

Priory Park

The route is 400m long, initially along a public footpath (C – D), then along grassed areas. It starts at the north east corner of a development site where the developer will construct a section of the path to meet the public footpath at Point C. The route will follow the line of the current footpath (FP43), turn sharp right (D) to a path leading to the car park, then pass on grassed areas to the north of the Bowls Club and the play area before traversing across the lower field to join the Martin Street development (E).



Views from Point C to Point E

Appendix 4

Construction of the Cycleway/Footpath

Pathway Surface

The pathway should be a minimum of 2.5m wide across open spaces. Where the available width is physically constrained, it should be as wide as possible, and not less than 2m. The pathway should be bounded by timber at vulnerable edges. The construction should follow the advice from Hampshire County Council (Countryside Access) on Countryside Service Design Standards for Path Surfacing (2013). The top surface should be a layer of self-binding path gravel, similar to that used on the Swanmore recreation ground (photo).

Lighting

Proposals should be offered for solar powered pathway lighting along sections owned by the Parish Council (A – B and D – E). The lights should be located alongside the path or, preferably, in the path itself, sufficient only to indicate the route of the pathway.

Fencing

Fencing will be required to separate the allotments from the path. Two costed options should be offered:

- Wooden post and rail fencing 1.2m high
- Metal mesh deer-proof fencing 1.9m high

The pathway route should be rounded off where the public footpath joins the small path the Priory Park (D). A section of the current fencing will need to be removed and reinstated to fit.

Public Footpath Section (C – D)

The oak trees alongside this section of the route will require special arrangements for the protection of their roots such as geocell panels or similar, which will raise the level of the surface. The trees do not have TPOs.

Working Group Meeting 22.6.21

Present: [redacted]

The Working Group met to review the project, confirm actions so far and consider the next steps.

Review of project:
No change to the proposal as detailed on Page 1 of this paper "A southern footpath/cycleway linking the current housing development sites in the western area of Bishop's Waltham is proposed".

Actions so far:
At the Finance, Policy & Resources Committee meeting on 5.1.21 the Councillors resolved:

FPR125/20 Southern Footpath/Cycleway.
Update for consideration.
Resolved: to obtain tenders, when required, for the different sections of the works as follows:
With effect from April 2021:
1) The stage from the current Tangier Lane Development to Priory Park Car Park and then to the below Martin Street Development.
2) The stage from the Albany Farm Development to the current Tangier Lane Development when it commences, and the Council has a firm idea of exact locations for the start and finish of the path.
[redacted]
All in favour.

Invitations to tender were sent out in March and April 2021 to 14 contractors and 4 responses were received.
The tenders have not yet been considered as the project has now passed to the Halls & Grounds Committee.

The new Working Group has undertaken site visits to familiarise themselves with the locations.

Next steps:

1. To recommend to the Halls & Grounds Committee that tenders are invited for the construction of the cycleway/footpath from C to E (the Priory Park section).

2. To arrange a site meeting with Crest Nicholson to discuss the link from B to C (Tangier Lane developments).

3. To arrange meeting with Bargate to confirm access from E to the Martin Street site.

4.To visit site A to B (Allotment site) to measure available space and consider any works to cut back vegetation.

5. To check minimum width required for a shared cycle path/footway.

6. To provide information on the path A to B for the residents of Albany Drive.

7. To review options for lighting of the path.

Parish Council Working Group Meetings – Autumn 2021

Southern Footpath **H&G working group meeting**

28th September 2021, 10am, Jubilee Hall

Present: [redacted]

Railway Footpath Link Up

[redacted]

Bosworth Gardens Estate into Priory Park

[redacted]

Tenders and Funding

Tenders for whole footpath project managed by [redacted] (spec and tender info)

14 contractors interested; 4 responded with tenders – then put on hold (project to be split into stages)

60K allocated of BWPC CIL money for 2021-22; more should follow as WCC CIL for this project

Priory Park Pitches area (from PP car park towards Leopold Drive)

[redacted]

Tangier Lane Development

Meeting needed with developers about path link ups and 'vision/plan' for this footpath through the estate and onto public footpaths (reference to map -points E to F) as crosses road/enters estate

Arrange site meeting with Crest Nicholson and this WG **ACTION:** [redacted]

Note that agreement made with landowner [redacted] for access – [redacted] has copy **ACTION:** [redacted]

Consider, where footpath meets road: staggered gateway

mirror on Tangier Lane (private road so no Highways permission)

signage 'road ahead' or similar

Next Meeting: Site Visit to walk route and access conditions/areas of concern **Thurs 14th Oct, 10am – PP car park**

Southern Footpath **H&G working group meeting**

13th October 2021, 11am, Priory Park – Tangier Gardens/Tangier Lane

Present: [redacted]

Pre-Meet

Walked route from Priory Park car park to Tangier Gardens – analysed width of footpath and vegetation on either side to ascertain width available for pathway

Meeting with Reps

The group met on the footpath where the end of The Avenue meets Tangier Gardens.

Walked pathway through estate – begins at land boundary – very broad, smooth pavement. Then runs into pavement where pedestrians can walk through estate and cyclists ride on road. Note – breaks in pavement where meets road, few dropped kerbs, no flow – would mean pedestrians crossing roads to follow pavement through estate.

Walked from estate entrance alongside ancient footpath route – very dominated by tree roots, narrow in places.

Exited footpath onto Tangier Lane and viewed CN estate entrance lower down on road (short roadside walk) or, potentially, a crossing from end of footpath across road directly into neighbouring CN estate.

Discussed this community project with CN and highlighted community value of this linked footway.

Points to consider

- CN to supply estate plan to ascertain pathways through and how footpath could link up
- Consider speaking to [redacted] owner of farm and where CN compound is currently sited, for a widening of the footpath (request for land). CN to approach owner in first instance as part of their diplomacy initiative.

Meeting after reps

Walked route within Priory Park to Bosworth Gardens.

Noted work required to cut through hedge, ditch work and creation of bridge/ramp.

Actions:-

As above plus

- H&G to be asked to retender footpath groundworks for BWPC section only at October meeting.
- Check landownership from Priory Park – Leopold Drive – footpath to Tangier Gardens
- Consider a meeting with Hampshire Countryside Access to seek views on footpath works
- Set next working group meeting following H&G decision on retender of footpath proposal

[redacted] 13.10.21

Southern Footpath **H&G working group meeting**

23rd November 2021 10-11:30am BWPC Office

Present: [redacted]

Notes from meeting

Past papers regarding this project, that were available, were considered as background information to bring the working group up to speed. Still a lot of outstanding issues to resolve but it was noted how much prior work had been diligently given to this project.

The scope of the available area of footpath that could be realistically tackled at this time was duly considered. [redacted]

Other sections would need investigating and reporting back on to further progress in 2022 (Tangier Gardens, Albany Wood (near SINC/Allotments) and into Bishop's Meadow).

The specification for the invitation to tender for the footpath would be:-

- Surface specification as per original specification in Nov 2020
- Lights preferred as per Greenford quote
- Wooden bridge to be included, as link into Bosworth Gardens
- Start date in Spring 2022 aimed for

A timescale was proposed:-

Dec F,P&R	Specification and Plan of Route to be recommended as to go out to tender
Dec PC	As above for full council ratification
Dec H&G	Working group notes and outline of actions as above
Jan	Send out tender advert and invitations / Tues 11th Jan – next working group meeting to check status
Feb H&G	Consider tender quotations and select contractor
March F,P&R	Consider contractor recommended and approve for council
March PC	Consider recommendation and ratify decision
March	inform successful contractor and schedule in works for **Spring**/Summer **2022**

Actions:-

- Specification to be drawn up with plan of route for F,P&R **ACTION: AO**
- Tender advert and invites to be drawn up ready for release in January **ACTION: AO**
- Investigate into WCC Local Plan BW3 and Planning Permission granted for Crest Nicholson and how estates connect and cycleway/footpath clearly marked **ACTION: EO**
- [redacted] **ACTION: EO**
- Consider work needed in the above section **ACTION: AO/EO**

[redacted] **ACTION: AO/EO**

- Report back on all the above at next working group meeting **Tues 11th Jan 10am** BWPC Office/Ruby Room

EM 23.11.21

Emails 2022-2023

From: [redacted]
Sent: 20 July 2022 13:04
To: [redacted]
Subject: Bishops Waltham Phase 2 Cycleway

Hi [redacted]

I hope you're well.

We have been made aware that the council is chasing the construction of a cycleway through phase 2 of our development in Bishops Waltham. Our planning consultant has investigated the history on this, and my understanding is that we submitted the attached plan in line with condition 10 of the RM consent (3431040-P4 Cycleway) and have some minor works left to complete, which we are currently booking in. My understanding from our consultant & [redacted] (previous site manager) is that you would like to amend the cycle route so that it follows the route shown in the second attachment.

To move this forward, I would like to arrange a meeting with the Parish Council, Winchester City Council and any other interested parties so that we can confirm the route of the cycleway. Following this, we will be able to produce designs based on our discussions and progress the delivery of the cycleway.

Please could you review internally and advise on availability to discuss on a call, so that I can issue an invite.

Kind Regards,

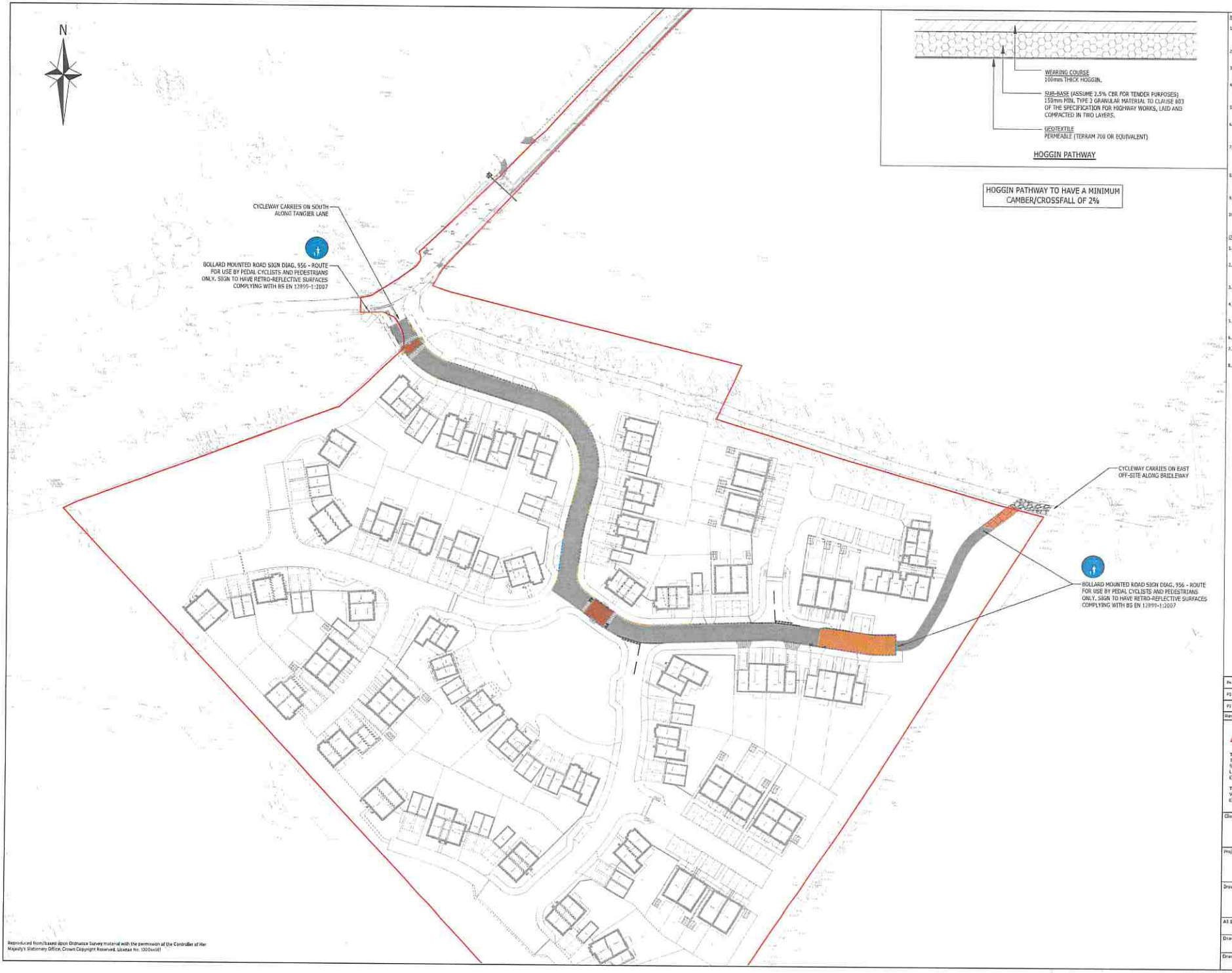
Senior Technician

Crest Nicholson South

Crest House, Pyrcroft Road, Chertsey, KT16 9GN

M: 07385 025590 T: 01932 580346

www.crestnicholson.com



Reproduced from/based upon Ordnance Survey material with the permission of the Controller of Her Majesty's Stationery Office. Crown Copyright Reserved. License No. 0100045081

NOTES:

1. THIS DRAWING IS TO BE READ IN CONJUNCTION WITH THE RELEVANT SPECIFICATION, INC. RISK ASSESSMENTS (SEE CDM NOTES) AND ALL OTHER RELATED DRAWINGS ISSUED BY THE ENGINEER.
2. DO NOT SCALE FROM THIS DRAWING. WORK FROM FIGURED DIMENSIONS ONLY.
3. ALL DIMENSIONS SHOWN ON THIS DRAWING ARE IN METRES UNLESS OTHERWISE STATED.
4. ALL DIMENSIONS, LEVELS AND SURVEY GRID CO-ORDINATES ARE TO BE CHECKED ON SITE AND THE ENGINEER NOTIFIED IMMEDIATELY OF ANY DISCREPANCIES PRIOR TO THE COMMENCEMENT OF THE WORKS.
5. NO DEVIATION FROM THE DETAILS SHOWN ON THIS DRAWING IS PERMITTED WITHOUT PRIOR PERMISSION FROM THE ENGINEER.
6. ANY WORKS OUTSIDE RED SITE BOUNDARY ARE FOR INFORMATION PURPOSES ONLY, UNLESS SPECIFICALLY NOTED, ALL WORKS OUTSIDE THE SITE BOUNDARY WILL BE UNDERTAKEN BY OTHERS UNDER A SEPARATE CONTRACT.
7. ALL MATERIALS AND WORKMANSHIP SHALL COMPLY FULLY WITH THE MANUAL OF CONTRACT DOCUMENTS FOR HIGHWAY WORKS, VOLUME ONE, SPECIFICATION FOR HIGHWAY WORKS AND THE LOCAL AUTHORITY SPECIFICATION FOR ROAD CONSTRUCTION AND STANDARD DETAILS.
8. THE PUBLIC HIGHWAY AND WORKS WILL BE KEPT CLEAN AND FREE OF DEBRIS BY USE OF WHEEL WASHING FACILITIES AND ROAD SWEEPERS TO THE COUNCIL'S SATISFACTION.
9. ALL SETTING OUT SHALL BE AGREED ON-SITE WITH THE ENGINEER, PRIOR TO THE COMMENCEMENT OF THE WORKS.
10. THE CONTRACTOR SHALL BE RESPONSIBLE FOR OBTAINING ALL NECESSARY APPROVALS FROM THE LOCAL AUTHORITY PRIOR TO COMMENCING WORKS ON THE HIGHWAY.

CONSTRUCTION NOTES:

1. ALL SOFT SPOTS AND VOIDS SHALL BE REMOVED BEFORE CONSTRUCTION AND REPLACED WITH SUITABLE FILL MATERIAL.
2. ROAD FORMATION TO BE IN ACCORDANCE WITH CLAUSE 618 AND COMPACTED IN ACCORDANCE WITH TABLE THE REQUIREMENTS OF 6/4 OF THE SPECIFICATION FOR HIGHWAY WORKS - SERIES 600 EARTHWORKS.
3. APPROVED RESIDUAL WEEDKILLER, WHICH DOES NOT CONTAIN ATRAZINE OR SIMAZINE, MUST BE APPLIED TO ALL FORMATIONS.
4. ALL CONCRETE AND CEMENT MORTAR MUST BE SULPHATE RESISTING TO BS 4027.
5. ALL CARRIAGEWAY MATERIALS SHALL BE SUPPLIED AND LAID IN ACCORDANCE WITH BS EN 13108-1.
6. ALL MATERIALS IN CARRIAGEWAYS TO BE LAID BY MACHINE.
7. MINIMUM DEPTH OF 450mm CONSTRUCTION IS REQUIRED FOR NON-FROST SUSCEPTIBLE MATERIAL.
8. THE CONTRACTOR MUST VERIFY CBR VALUES ALONG EACH ACCESS ROAD AT 20m INTERVALS, THE RESULTS OF WHICH MUST BE SENT TO THE ENGINEER FOR CONFIRMATION OF THE CARRIAGEWAY CONSTRUCTION SHOWN ON THIS DRAWING, PRIOR TO COMMENCING THE WORKS.

SITE BOUNDARY
KERB TYPE PC1 - 100mm UPSTAND
KERB TYPE PC3 - 25mm UPSTAND
KERB TYPE PC4 - 0mm UPSTAND
PRE CAST CONCRETE EDGING - 0mm UPSTAND
TIMBER EDGING
DROPPER KERB
MACADAM CARRIAGEWAY
BLOCK PAVED CARRIAGEWAY
FLEXIBLE TO BLOCK PAVED CARRIAGEWAY RAMP
MACADAM FOOTPATH
HOGGIN PATH
ROOT PROTECTION CONSTRUCTION

FOR INFORMATION ONLY

Rev	Description	Drn	Chk	App	Date
P4	APPLICATION BOUNDARY UPDATED. New CROSSING ADDED.	JM	JM	GH	22.04.20
P3	CYCLEPATH SURFACING UPDATED	JM	JM	CH	15.04.20
P2	REVISED TO SHOW HOGGIN PATH DETAIL	MGL	JM	JC	07.09.20

ARDENT CONSULTING ENGINEERS
Third Floor
The Hallmark Building
52-54 Leadenhall Street
London
EC3M 5JE
Tel. 020 7680 4088
Web: www.ardent-ce.co.uk
E-mail: enquiries@ardent-ce.co.uk

Client: Crest Nicholson South, Crest House, Pyrcroft Road, Chertsey, Surrey, KT16 9GN

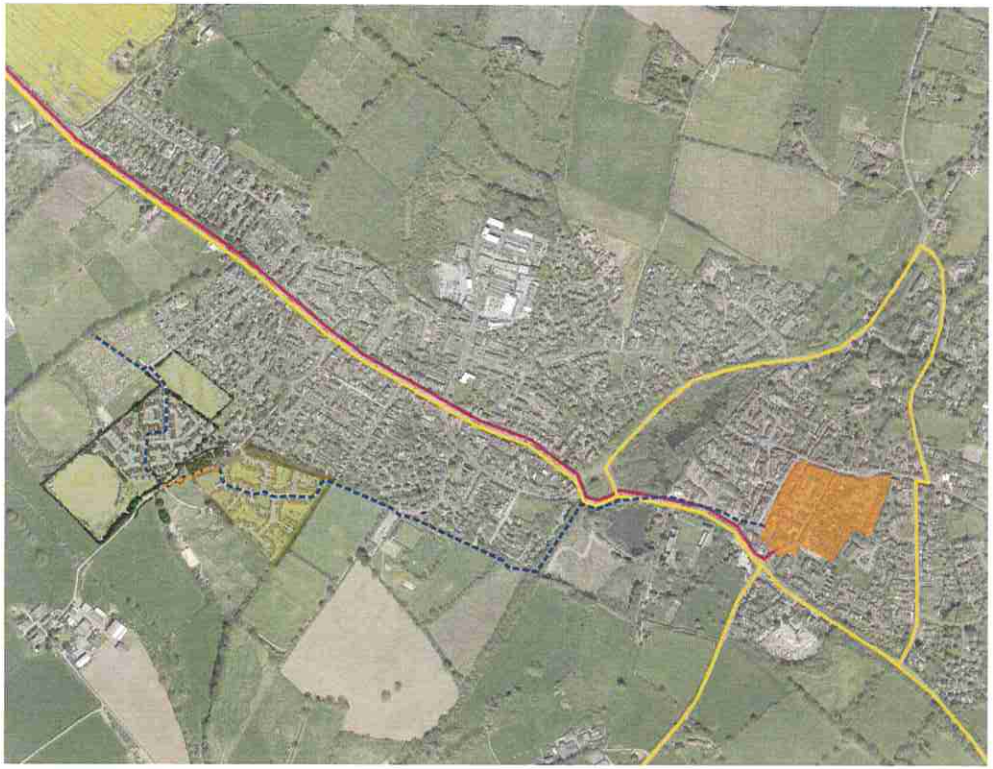
Project Title: BISHOPS WALTHAM (PHASE 2)

Drawing Title: SURFACE FINISHES - CYCLEWAY

At Scale	Date	Designed by
1:500	14.07.2020	JM
Drawn by	Checked by	Approved by
JM	JM	JC

Drawing Number: 14773-3135 Rev P4

TANGIER LANE PHASE 2 BISHOP'S WALTHAM



Proposed Pedestrian / Cycle Route

Cycle way to be agreed with 3rd party land owners

X10 Bus to Southampton

407/669 Bus Winchester to Curdridge / Botley

PROPOSED PEDESTRIAN/CYCLE ROUTE ALONG SOUTHERN EDGE OF BISHOP'S WALTHAM

From: [redacted]
Sent: 19 August 2022 15:17
[redacted]
Subject: Bishops Waltham - Cycleway

Hi All

I trust you're well and would like to thank you for meeting [redacted] on Tuesday 16th August.

I'm writing this email as a summary to set out the key items we discussed, and more importantly to set out the actions to deliver the cycleway in line with our obligations to the Parish Council and Winchester City Council.

Actions Taken to Date

1. Made a formal request for our build and commercial team remove the fence panel and complete the PRoW crossing in the Northwest corner of the development, so that the existing PRoW can be restored to full use. I have been advised that this will be completed in the coming days and will confirm once this has been completed.
2. Prepared a signage layout in-house which has been circulated internally for approval.
3. Our commercial team are procuring a topographical survey to complete the footpath connections to the western extent of the PRoW in phase 2 (Tangier Lane), which will connect the developments cycle route to the existing PRoW. Once we have reviewed the options we will revert with our proposals.
4. The build and commercial team will be completing the final connection to the PRoW in the northeast corner of the development, in line with the approved drawings.
5. I have spoken with our build team and they have confirmed that they will be completing the remedials to the cricket ground entrance this week. I will confirm once completed.

Since the meeting, we have reviewed some of the actions and have been able to respond to some of these queries:

Phase 1 Cycleway Connections

This is the item concerning the crossing to the south of the SINC along the access road into phase 1 of the development. We are discussing this internally and will revert once we have confirmation of the viability of the crossing in the context of the overall layout.

Phase 1 Cycleway Surfacing Materials

Based on the consented planning drawings, it looks as though the cycleway through the site will be hard surfaced rather than bound gravel. As discussed in our meeting, I have reviewed the status of the build with our build team and they have advised that these works are currently being carried out by the groundworker on site, unfortunately there is no opportunity to change this.

Tangier Lane Crossing

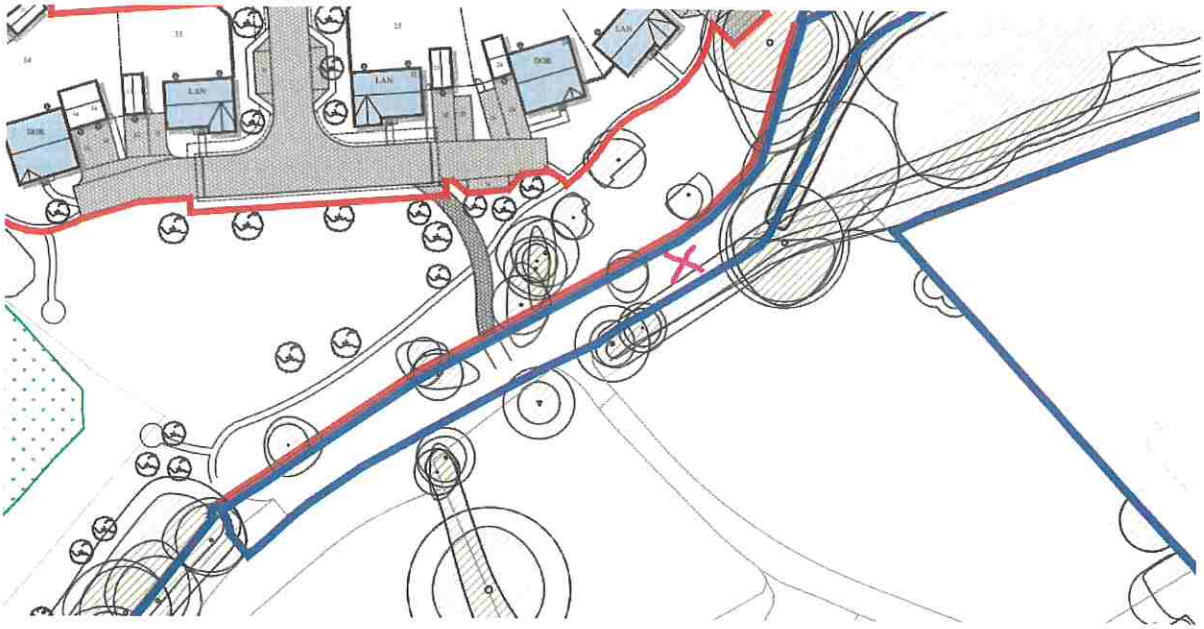
We have reviewed the overall site layout to assess how we could align the cycleway to cross Tangier Lane in your preferred location (shown by purple 'X' on the plan below). There are a couple of factors that would make the proposed location of the crossing challenging to implement. These are:

1. We have designed the current alignment of the cycleway so that it allows for minimal tree clearance. Realigning the cycleway will lead to an increased requirement for tree removal.

2. There are levels issues to the north of the lane; therefore, we would need to complete relevelling works within the woodland to facilitate the cycleway which would mean increased tree clearance would be required.

Other considerations:

3. The current alignment of our cycleway would allow for an equally safe crossing point to be installed by the local Council.
4. The Parish Council aspire to improve the width of the PRoW and surface conditions to improve the routes suitability as a cycleway.
5. To upgrade the existing PRoW, on [redacted] land (held under Option by Crest Nicholson), would require permission from [redacted]
6. Whether there are other opportunities for betterment of the cycleway using [redacted] land.



As I found the meeting on Tuesday particularly useful, perhaps we can arrange a progress update meeting in the coming weeks.

Kind Regards,

Senior Technician

Crest Nicholson South

Crest House, Pyrcroft Road, Chertsey, KT16 9GN

M: 07385 025590 T: 01932 580346

www.crestnicholson.com

Classified as General

Meeting re: Crest Nicholson and Southern Footpath/Cycleway

Mon 12.9.22 1pm Jubilee Hall

Present: [redacted]

Points discussed:

Based upon CN email of 19th August 2022

Currently, no known designated crossing point for public on Tangier Lane (privately owned)

Informal agreement between BWPC and the two landowners to cross the road at mutually convenient place (not the one proposed by CN). This site has the best visibility for people crossing this busy lane with farm vehicles regularly in use.

CN state that moving the pathway from their plan to ours would implicate more tree loss and greater levelling work required. (this needs verifying and costs estimated as could be justified as preferred route for the community in this area).

Review effect of trees – removal and possible replanting. Types – high value or not? Number affected. Study of trees required.

Check with WCC (RG) is commitment to planning conditions met by CN plans?

Do CN have the link made? Do they have permission to cross Tangier Lane? If not, link not made. Landowner may just fence off end of route from Albany Wood onto Tangier Lane if no permission granted.

Where is red boundary line? Who owns the tree line? If original landowner then they have given informal permission to put in footpath route, so not a CN problem to overcome.

Need formal plans, maps and photos to highlight our preferred plan and to request the two landowners' permission to make the footpath as planned.

May need to contact HCC or landowner to turn footpath into bridleway.

Clerk to P&H Committee to now take over matters relating to Planning Issues relating to these estates.

ACTIONS

1	Contact WCC Planning Dept (RG) and check requirements for CN and southern footpath conditions. Have they been met?	[redacted]
2	Have CN been granted permission to cross Tangier Lane between the two estates?	[redacted]
3	Plan/draft agreements for two landowners for BWPC route across Tangier Lane	[redacted]
4	Consider route – tree survey, hedge cutting, fence line adjustments	[redacted]
5a	CN request to consider footpath/cycleway signage. Feedback to be given: Tangier Gardens – signs agreed but clarity needed on pavement – seems to be missing?	[redacted]
5b	CN request to consider footpath/cycleway signage. Feedback to be given: Albany Wood – on hold until footpath link agreed – further discussions needed	[redacted]
6	Request by CN to hold next meeting. Reply to be given: Meeting on Wed 28th Sept if possible to be proposed	[redacted]

[redacted] 12.9.22

From: [redacted]
Sent: 15 September 2022 08:58
[redacted]
Subject: Tangier Gardens Extension

Dear [redacted]

I hope you are well.

I'm writing this email as a follow up to the meetings that took place on 13th July and 16th August, to discuss the promotion of land south of Tangier Gardens [redacted] and the delivery of the cycleway running through Tangier Gardens.

I understand that [redacted] has made good progress with the delivery of the cycleway through Tangier Gardens since our last meeting, including:

- Preparing signage for improved wayfinding through the development.
- Procuring a topographical survey to complete the cycleway connection to the PRoW on the western extent of Tangier Gardens, in line with the approved drawings.
- Instructing work to connect the cycleway to the PRoW in the northeast corner of the development, in line with the approved drawings.

During the meeting of 16th August, it was agreed that Crest could deliver the cycleway, in line with the consent, on land they control. Outside of the consent, I understand from the meeting that the Parish Council have aspirations to enhance the cycleway at the location between the western extent of Tangier Gardens (Phase 2) and where it connects to Albany Wood (Phase 1), see figure 1 below. The route of the cycleway between the two phases includes the PRoW running along the western extent of Tangier Gardens, the PRoW on [redacted] land and crossing Tangier Lane.

From our discussion, I noted several points where enhancement of this part of the cycleway were mentioned by the Parish Council during the site visit:

- Widening the PRoW on the Phase 2 Land and Mr Painters Land to make it an appropriate width for cyclists. The widening of the route would require consultation with Hampshire County Council and approval from [redacted] and Crest Nicholson as they have an Option Agreement over [redacted] land.
- Providing a suitable surface material to make the route user friendly, particularly in the wetter months, for pedestrians, bicycles, and buggies. I have sought advice from a highways consultant to inform the discussion on improving the PRoW route:
    - The PRoW is designated as a footpath which technically means cyclists have no right to use this route; however, there is the ability to apply for an order to gain the rights for cyclists to use the footpath. It is likely that some substantial works will be required as part of the application i.e. widening, levelling, surfacing, drainage and lighting requirements. The cost of this work, including designs, is estimated to be circa £75-150k. Full depth construction/widening is likely to need more land than currently available as adopted highway.
    - The process to upgrade the footpath could be via one of two options: the works can be agreed through a S278 agreement under an application submitted as part of [redacted] land for residential development (if allocated for development in the emerging LP). Alternatively, a separate planning application, only for the footpath improvements, could be prepared, at cost, and can typically take 5-6 months if a formal order is needed. It is worth noting, as part of the proposals for development of [redacted] land, Crest would offer both the upgrade of the PRoW and the alternative options suggested below.

- The crossing of Tangier Lane to be located further east along the lane. I know Joe is investigating the feasibility of this option.

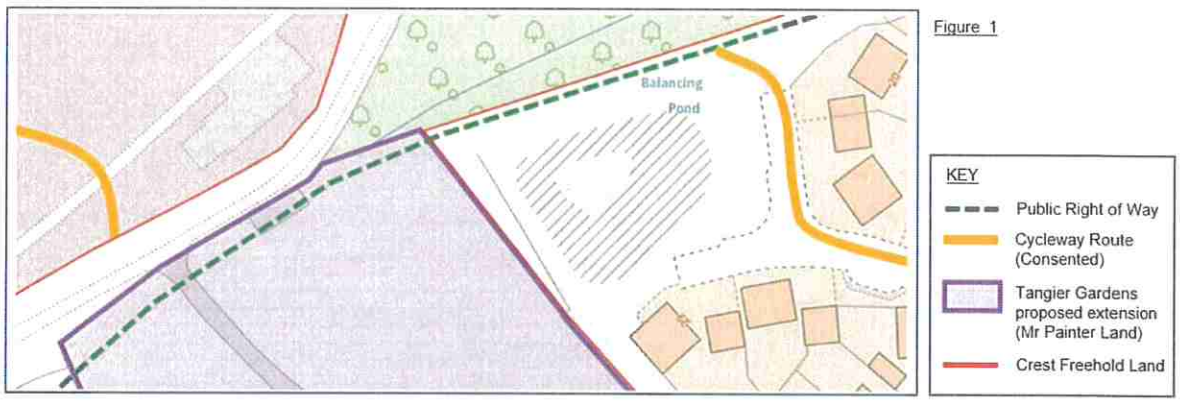


Figure 1

We think there are advantages associated with alternative options that could be delivered and funded by Crest as part of the development of land to the south of Tangier Gardens. I attach 2 alternative routes which could include a 'cycleway destination' as part of the proposal.

We can share our thoughts on what a 'cycleway destination' could comprise, but we would very much welcome any ideas the Council has on the type of destination that would be of greatest benefit to the local community. From other developments Crest have delivered, destinations on successful trim trails and cycleways have included a community orchard, outdoor gym, play area, high-value-biodiversity-pockets, and wellbeing gardens. The community use and cycleway will then be embedded in the design of any masterplan proposals for [redacted] land.

We are also currently working up potential options for [redacted] land and would welcome the opportunity to provide more details relating to the dwellings/layout for discussion with the Parish Council, if the Parish Council were open to that.

We believe there is a real opportunity to utilise the extension land to fund and to deliver the missing link between Phase 1 and Phase 2 and to connect the town's southern cycleway, providing a safe and usable route for residents across this area to travel to the town centre and other key amenities.

If the Parish Council have any availability towards the end of September/early October for a meeting, Crest Nicholson would welcome the opportunity to hear your thoughts on these options and to further advance the response to the concerns raised at the July meeting.

I look forward to hearing from you.

[redacted]

Strategic Land & Planning Manager

Crest Nicholson Partnerships and Strategic Land

Crest House, Pyrcroft road, Chertsey, Surrey, KT16 9GN

M: 07729 749301 T: 01932 580555

www.crestnicholson.com

Classified as General

From: [redacted]
Sent: 16 September 2022 09:07
[redacted]
Subject: RE: [EXTERNAL] RE: Tangier Gardens Extension

Dear [redacted]

Thank you for your email.

Absolutely. The focus firmly remains on delivering the cycleway for Phase 1 and 2. I will liaise with Joe on the programme for completing the delivery of the cycleway.

If the Parish Council would like to meet with Crest, perhaps we could get a date in the diary for early October to provide an update on the cycleway through Phase 1 and 2, and to discuss our suggestion for a potential betterment of the cycleway route. We are keen to hear your ideas on what form this could take.

I know that at the meeting of the 16th July, concerns were raised on the capacity of Tangier Lane and along Winchester Road. Crest would also welcome the opportunity to present and discuss some ideas for mitigating congestion on these routes.

Please do let me know some suitable dates for a meeting.

I look forward to hearing from you.

Kind regards,

[redacted]

Strategic Land & Planning Manager

Crest Nicholson Partnerships and Strategic Land

Classified as General

.....

From: [redacted]
Sent: 15 September 2022 09:16
[redacted]
Subject: [EXTERNAL] RE: Tangier Gardens Extension

[CAUTION: This email originated from outside Crest Nicholson. Do not click links, open attachments, or perform any requested actions unless you recognise the sender and know the content is safe.]

Dear [redacted]

We would like to meet with you again with regard to the cycleway through Phase 1 and 2. Perhaps you could let me know when you are available for such.

We really need Phase 1 and 2 completed before looking at future plans.

Kind regards

Executive Officer

Bishop's Waltham Parish Council

From: [redacted]
Sent: 23 September 2022 17:02
[redacted]
Subject: RE: [EXTERNAL] RE: Tangier Gardens Extension

Dear [redacted]

Thank you for your response.

As discussed before, we are able to deliver the cycleway through Phase 1 and Phase 2, as per the consented drawings. I understand your conversations with Joe on the betterment of the cycle route through Phase 1 and 2 remain ongoing.

Due to some of the consultant team being on annual leave at the beginning of October and I'm away towards the end of October, may I suggest the w/c 7th or 14th November for a meeting to talk through the potential for Phase 3 and progress made on the cycleway for Phase 1 and 2? Ahead of this meeting, I will endeavour to provide a programme for the completion of the cycleway as I appreciate the importance of the work being completed.

In the meantime, please do let me know if there is anything else I or the Crest team can help with.

Have a lovely weekend.

Many thanks,

Strategic Land & Planning Manager

Crest Nicholson Partnerships and Strategic Land

Classified as General

.....

From: [redacted]
Sent: 16 September 2022 10:26
[redacted]
Subject: RE: [EXTERNAL] RE: Tangier Gardens Extension

[CAUTION: This email originated from outside Crest Nicholson. Do not click links, open attachments, or perform any requested actions unless you recognise the sender and know the content is safe.]

Dear [redacted]

We have availability on the afternoon of Wednesday 5th October if this is suitable for you. We can meet in the Ruby Room at 1pm again as we did previously?

We are still wanting to proceed with our plan for the southern footpath/cycleway over Phase 1 and 2, as discussed previously and agreed with Paul Vincent of Crest Nicholson, so we can clarify that with you then.

Ideally, we would like Phase 1 and 2 completed satisfactorily before we look at any ideas for Phase 3.

Kind regards

Executive Officer

Bishop's Waltham Parish Council

From: [redacted]
Sent: 04 October 2022 10:26
[redacted]
Subject: RE: [EXTERNAL] RE: Tangier Gardens Extension

Dear [redacted]

Thank you. I will liaise with the team and get back to you shortly with a selection of suggested dates for November.

Many thanks,

Strategic Land & Planning Manager

Crest Nicholson Partnerships and Strategic Land

Classified as General

From: [redacted]
Sent: 03 October 2022 11:19
[redacted]
Subject: RE: [EXTERNAL] RE: Tangier Gardens Extension

[CAUTION: This email originated from outside Crest Nicholson. Do not click links, open attachments, or perform any requested actions unless you recognise the sender and know the content is safe.]

Dear [redacted]

Thank you for your email.

We are progressing with plans for the links with the Southern Footpath and will reply to [redacted] later this week.

Yes, if you'd like to meet in November then let me know which days and times are best for you and where you'd like to gather.

Kind regards

Executive Officer

Bishop's Waltham Parish Council

From [redacted]
Sent: Friday, February 10, 2023 1:01 PM
To: [redacted]
Subject: [EXTERNAL] FW: Bishops Waltham Phase 2 Cycleway

[STOP: This email originated from outside Crest Nicholson. THINK BEFORE YOU CLICK: Do not click links or open attachments unless you recognise the sender and know the content is safe. Do not enter your ID and Password and think before you accept an Multi Factor Authentication prompt.]

Hello again

Maps attached showing cycle signage.

Please note that this map is **not the agreed route** however as we cannot use Tangier Lane for pedestrians or cyclists as it is a private road and the landowner will not allow public access due to H&S concerns. The route planned crosses over Tangier Lane at one point, as previously agreed with [redacted], and does not cause problems by a long walk along the lane. [redacted] has agreed to the one crossing point.

The footpath on Albany Wood will need to come along the boundary and cross onto the Tangier Gardens estate using one pathway across Tangier Lane (as previously discussed).

So the **orange dotted line** is on the Albany Wood estate, alongside Tangier Lane, and crosses the lane where the orange turns to blue on Tangier Gardens side.

The residents will be kept safe off the farm lane and enable a greater community spirit and cohesion.

Thank you for your assistance with this community project.

Kind regards

Executive Officer

Bishop's Waltham Parish Council

From: [redacted]
Sent: 13 February 2023 12:02
To: [redacted]
Subject: RE: [EXTERNAL] FW: Bishops Waltham Phase 2 Cycleway

Hi [redacted]

There were several emails sent to me last week, so I have tried to summarise / answer all of the points raised in this response:

1. I will speak to the site manager and get the fence panel removed. This should have been done some time ago so I apologise that it has not been dealt with.
2. Boundary marking is not shown on the approved plans so we have not allowed for erecting anything of this nature. The footpath is considerably lower than the balancing pond, which is a dry-feature in any case so I don't envisage the pond being a safety issue.
3. The route I marked with the arrow in my email of the 06.02.23, does connect to the PRoW. The planning condition requires us to make a connection in the west of the site – the location I have marked achieves this in a safe way.
4. I have spoken to the site team and the blue markers were not set out by us. I think this may have been southern water, plotting the route of their asset through our land as part of their wider works in the area.
5. I will update the attached plan so that the cycle signage is shown in the correct locations. Once we are in agreement with the route, I will submit the plan to discharge the condition and we can then install the signage.
6. Can you send through details of the improvements you are making to the PRoW? I believe that the right of way is within our land, so we would need to review the proposals prior to works commencing. We would also need to look into H&S etc. during the works as any contractors employed by the PC will be working on our land.
7. With regards to the footpath and the links between phases 1 & 2. As previously advised, we can only deliver what is shown on the approved drawings (or a suitable alternative) and cannot deliver the footpath connection, shown crossing the private lane. Any agreement with [redacted] regarding the crossing point would need to be progressed and delivered by the Parish Council – we will deliver on our obligations to deliver the links through our sites as shown on the approved drawings, but we have no route to deliver works on third party land.

I am on site later this week with WCC and will walk the route in Phase 2 (Tangiers).

Please don't hesitate to get in touch if you would like to discuss this further.

Technical Manager

Crest Nicholson South Classified as General

From: [redacted]
Sent: 13 February 2023 12:09
[redacted]
Subject: RE: [EXTERNAL] FW: Bishops Waltham Phase 2 Cycleway

[STOP: This email originated from outside Crest Nicholson. THINK BEFORE YOU CLICK: Do not click links or open attachments unless you recognise the sender and know the content is safe. Do not enter your ID and Password and think before you accept an Multi Factor Authentication prompt.]

Thanks [redacted] that looks like a good summary of points.

Many thanks for confirming the fence panel will be adjusted to allow a greater access to the footpath – that's a great first step.

Yes, we did think the blue markers may be water related so that's good to have confirmed.

The improvements to the PROW will be made alongside HCA so we'll keep you informed of these enhancements which are being planned to aid the residents and locals of Tangier Gardens.

I have a busy week ahead this week but will review and come back to you on this list before the end of the month.

Kind regards

[redacted]

Executive Officer

Bishop's Waltham Parish Council

From: [redacted]
Sent: 17 February 2023 12:37
[redacted]
Subject: RE: [EXTERNAL] FW: Bishops Waltham Phase 2 Cycleway

Dear [redacted]

I hope you are well.

It is positive to see progress being made to rectify some of the issues highlighted by the Parish Council in respect of the Tangier Gardens development.

I understand the Parish Council have contacted [redacted] regarding the crossing of his land, for which Crest Nicholson has an Option over, to widen the route and provide surface improvements to facilitate a cycleway. Crest is supportive of sustainable transport options for the town and would be happy to engage on with you directly on the potential use of [redacted] land.

I would be happy to meet with you in person to explore some potential options in more detail. If this is something that would be of interest, please do let me know some dates that would work best.

Many thanks,

[redacted]

Strategic Land & Planning Manager

Crest Nicholson Partnerships and Strategic Land

Classified as General

Letter to Crest Nicholson from BW Parish Council - December 2023

Bishop's Waltham Parish Council
Clerk to the Council: Mrs E McKenzie
01489 892323

Parish Council Office
The Jubilee Hall
Little Shore Lane
Bishop's Waltham
Hampshire
SO32 1ED

19th December 2023

Mr [redacted]
Senior Technician
Crest Nicholson South
Crest House
Pyrcroft Road
Chertsey
Surrey
KT16 9GN

Dear [redacted]

The Parish Council considered, again, the offer from Crest Nicholson Operations Ltd to accept the Informal Green Open Space and the Open Space, at Albany Road/Wood, referenced within the S106 Agreement dated 27th June 2017 (ref:16/01322/FUL) at their meeting on 12th December 2023.

The Council have considered the offer previously and have had been in liaison with you regarding certain aspects of the transfer in terms of the balancing pond responsibility, the condition of the land following construction and the pipework project, as well as the Southern Footpath/Cycleway route.

In formal response to your email and letter regarding the land transfer, the Council indeed would like to accept the land as per the plans supplied. However, the Council can only do so if all matters arising are properly addressed and brought to a satisfactory agreement. Examples of such 'snagging issues' are the appropriate boundary fencing of the Open Space (SINC) and inspection of land before signing off for appropriate land management to be continued (as per the S106 agreement). Public access to the Informal Green Open Space must be agreed and the Southern Footpath clearly marked for such.

Please note our acceptance of the Informal Green Open Space and the Open Space, at Albany Road/Wood and the conditions for consideration during the legal transfer process.

We look forward to your solicitor making contact to progress the land transfer during 2024.

Yours sincerely,

[redacted]

[redacted]

Parish Council Chairman
marsh@bishopswaltham-pc.gov.uk

Executive Officer
parishclerk@bishopswaltham-pc.gov.uk

From: [redacted]
Sent: 19 January 2024 09:32
To: [redacted]
Subject: RE: Open Space - Transfer Offer - accepted

Thank you for the letter.

I have passed this to our solicitor who will be managing the transfer and will respond in due course.

Kind Regards,

Technical Manager

Crest Nicholson, 500 Dashwood Lang Road, Bourne Business Park, Addlestone, Surrey, KT15 2HJ

Classified as General

From: [redacted]
Sent: Tuesday, December 19, 2023 10:21 AM
To: [redacted]
Subject: [EXTERNAL] RE: Open Space - Transfer Offer - accepted

[STOP: This email originated from outside Crest Nicholson. THINK BEFORE YOU CLICK: Do not click links or open attachments unless you recognise the sender and know the content is safe. Do not enter your ID and Password and think before you accept any Multi Factor Authentication prompt.]

Dear [redacted]

Please find attached the letter of acceptance of land from the Parish Council.

We do have conditions on the transfer, but I'm sure they are standard queries to work through before finalising the legal document.

We can look at this in the new year, and progress the transfer via the solicitors.

Many thanks for your assistance in this matter.

Kind regards

Executive Officer

Bishop's Waltham Parish Council

Email from WCC to Albany Wood Resident - November 2024

Email from WCC to Resident 1.11.24

Clarification on the two Crest Nicholson sites (marketed as Tangier Gardens and Albany Wood), related to the connecting route between the two sites.

For background, the route forms part of the allocation policies, and runs through all of the allocated housing sites to the south of Bishops Waltham, to provide a direct route into the town centre. Each developer has either constructed part of the route or contributed to it.

I have separated each site below –

Albany Wood (16/01322/FUL)

The section 106 legal agreement secures a contribution of £21,729.19 toward the strategic footpath/cycleway.

The approved site plan shows a route toward the neighbouring Crest Nicholson site at Tangier Gardens. Thank you for your photos of the steps. We will make a visit to see how this relates to the approved plans.

Tangier Lane is not in the ownership of Crest Nicholson and needs to be crossed to meet their other site at Tangier Gardens.

Tangier Gardens (16/01327/OUT and 18/01144/REM)

18/01144/REM contains condition 11 which reads as follows;

> **11.** Prior to the occupation of development, details of the works for the new Cycleway traversing the site must be submitted to and approved in writing by the Local Planning Authority.
>
> Details must show the exact location and any associated features (such as gates and fences) for the route's entrance to the site in the north-eastern corner and where it exits the site to the west to re-join the Right of Way.
>
> Reason: To ensure the cycle route through the site meets existing infrastructure.

I attach the plan which was submitted for this condition. *This shows the cycle route going through the site and then north along Tangier Lane toward Siskin Close, this was because access arrangements across Tangier Lane were not achieved at that time and this was proposed as an alternative.*

I understand that those access arrangements across Tangier Lane may now have changed and I also note [redacted] mention of Parish Council assistance for the elements which are outside of Crest's ownership.

From here, [redacted] and I will meet to discuss the alternative options to use the Tangier Lane crossing option, and once I have all of the information I can then discuss further with Crest.

I will keep you posted on that, but I hope this background is useful for now.

Team Leader - South

Principal Planning Officer

Winchester City Council

Colebrook Street

Winchester, SO23 9LJ

There has been little progress or information on the Southern Footpath project in 2024 due to other issues arising with the Developer (SINC area and Informal Open Space).

The Parish Council's view on the footpath project has been to ensure the Developer has completed the works to WCC's satisfaction (signage and route through estates) and then, if need be, following the stalemate with the Developer, work with landowners once the Developer has left.

Local residents who have moved onto the estates are now asking about this planned footpath route and why it has not been completed.

This matter is now being addressed by WCC and BWPC with the Developer before the estates are finally signed off.

The Executive Officer and a Councillor met with WCC Principal Planning Officer on 8.11.24 to discuss next steps and BWPC met on 12.11.24 with the resolution below.

PC195/24 Review of Southern Footpath Route through Tangier Gardens and Albany Wood Estates

A paper was presented by Cllr Wood regarding the timeline of this project and the remaining work to be undertaken to complete the pathway route.

Resolved:

i) To support the continued work with WCC and the Developer to complete the Southern Footpath as agreed in the S106 agreement, planning permissions granted and the emerging Local Plan.

ii) To finalise links between Albany Wood estate and Tangier Gardens estate in liaison with the Developer, WCC, HCC Countryside Access and relevant landowners.

Proposed: Cllr Wood

Seconded: Cllr Marsh

All in favour. **ACTION: Executive Officer**

The Parish Council are dedicated to completing this footpath route for our community and acknowledge the work needed by WCC, the Developer and local landowners to join together to make this happen.